

SENATE BILL 1716

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 49
and Title 68, Chapter 140, Part 5, relative to
epinephrine.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-50-1602(f), is amended by
deleting subdivision (3) and substituting:

(3)

(A) It is the intent of the general assembly that schools, both public and nonpublic, be prepared to treat allergic reactions in the event a student's personal source of epinephrine is not available or the student is having a reaction for the first time.

(B) Each school in an LEA and each nonpublic school may maintain epinephrine at the school. If a school maintains epinephrine, then it is recommended that the school maintain epinephrine in a form that may be administered to a student believed to be experiencing a life-threatening allergic or anaphylactic reaction in at least two (2) unlocked, secure locations, including, but not limited to, the school's administrative office and the school cafeteria.

(C) Notwithstanding title 63 to the contrary, a physician may prescribe epinephrine in the name of an LEA or nonpublic school to be maintained for use in the LEA or nonpublic school when necessary.

(D) If a student does not have a personal source of epinephrine or a prescription for epinephrine on file, then the school nurse or other trained school personnel may utilize the supply of epinephrine maintained by the LEA or

nonpublic school, as applicable, to respond to an anaphylactic reaction in accordance with a standing protocol from a physician licensed to practice medicine in all its branches.

(E) If a student is injured or harmed due to the administration of epinephrine prescribed to an LEA or nonpublic school by a physician under this subdivision (f)(3), then the prescribing physician shall not be held responsible for the injury unless the physician issued the prescription or the standing protocol with intentional disregard for safety.

(F) If a student is injured or harmed due to the administration of epinephrine to the student by a school nurse or other trained school personnel under this subdivision (f)(3), then the school nurse or school employee shall not be held responsible for the injury unless the school nurse or school employee administered the epinephrine with intentional disregard for safety.

SECTION 2. Tennessee Code Annotated, Section 68-140-501(1), is amended by deleting "an epinephrine auto-injector" and substituting "epinephrine".

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.